

Email 3. Re: Request for Review and Adjustment of Payment for Pay Period 8.03.2024 - 31.03.2024

Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Fri 23/08/2024 12:40 PM

To: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Dear Chloe and Tammy,

I have recently had the opportunity to thoroughly review the matter at hand.

I would like to clarify that the agreement for '8 hours' between shifts, which is specific to overtime, does **NOT** apply to rostered shifts and includes **travel time**. Given the considerable distance of my residence from Logan Hospital, I trust you can appreciate that the document may not be applicable due to circumstances and timing.

Additionally, I completed this form at a time when I was seeking extra shifts while studying and working under a casual contract. It's understandable why I would agree to these terms under those circumstances. Sandra indicated that this agreement was for a single shift.

Moreover, since the signing of the document in 2020, I have entered a new contract, endorsed by Cameron Balentine, Tracey Smith, and Tammy Reece. This contract, signed and sighted in 2021, is a .8 permanent allocation. Subsequently, I have increased these hours to full-time.

There is no logical or legal justification to apply an agreement made during my casual employment after a full-time allocation and multiple updates to employment terms have been agreed upon. For instance, I would not be inclined to agree to the EB10 if there is a new agreement, such as the updated EB11.

I'm not sure if this is entirely clear, Further emails are now directed are a waste and should be directed elsewhere, especially considering that you did not respond to payroll's email last week regarding missed payments under other circumstances. It also feels like you had to search for this document and should have no knowledge of it.

I have also
Best regards,

From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Wednesday, May 1, 2024 2:19 PM

To: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Cc: Tammy Reese <Tammy.Reese@health.qld.gov.au>

Subject: RE: Request for Review and Adjustment of Payment for Pay Period 8.03.2024 - 31.03.2024

Good afternoon Cory,

Thank you for your patience as I gathered the necessary information from payroll and HR regarding your queries.

Regarding your question about the 10-hour agreement, please note that an 8-hour agreement was signed by you on 17 June 2020. I've attached a copy for your reference. After consultation with Payroll and HR, I must inform you that your request for fatigue payment for Monday, 18 March 2024, will not be processed due to the existing 8-hour agreement. However, you have the option to terminate this agreement, and I can provide you with the relevant information to do so.

An investigation into your query about the top-up/reduction of hours on your payslips is currently underway by Payroll. Please be aware that the payroll system automatically generates adjustments for top-up/reduction hours, which I am unable to view directly. Should you notice any discrepancies on your future payslips, inform me immediately so I can facilitate a prompt resolution.

Since your transition to full-time permanent status in the switchboard department, I can confirm that all payments for Public Holidays Not Required have been processed. HR is currently reviewing your entitlements regarding Public Holidays Not Required during your tenure as a part-time employee, as well as your overtime concerns. This investigation may take some time; for any questions in the interim, please contact HR directly at (07) 2891 5910 or LBH_HR@health.qld.gov.au.

We do have a protocol for handling procedures outside normal working hours, particularly regarding sick/emergency leave coverage, which I have attached for your review. Your feedback on these procedures is invaluable, and I am always open to suggestions from our team to enhance our operational processes. As the Switchboard Manager, it is part of my role to be on call after hours for urgent matters, which include emergencies like any general codes (Code Red, Yellow, Purple, Brown, and Orange), system outages or staffing issues due to illness.

I want to assure you that I have taken all your concerns seriously, responding to your emails promptly and discussing them with you in person and via text message. Further details, including dates of emails and meetings, can be provided upon request.

If you have any further questions or need clarification on any of the points raised in this email, please feel free to discuss them with me.

Kind regards,
Chloe

Chloe Taylor

A/Switchboard Manager | Switchboard Services

Logan Hospital | **Metro South Health**

Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131

t. (07) 2891 9190

e. chloe.taylor3@health.qld.gov.au | metrosouth.health.qld.gov.au



Metro South Health acknowledges the traditional custodians of whose land and waters we provide health services and pays respect to Elders past, present and emerging.

From: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Sent: Wednesday, 24 April 2024 3:15 PM

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Cc: Tammy Reese <Tammy.Reese@health.qld.gov.au>

Subject: Re: Request for Review and Adjustment of Payment for Pay Period 8.03.2024 - 31.03.2024

Importance: High

Hi Chloe,

I've been in touch with the payroll department regarding some discrepancies in my payments. They've advised me to notify you that, due to the way the payroll system is set up, payments for public holidays not worked will need to be processed as overtime in the fortnightly pay cycle.

Could you please take the necessary action and provide a PRN for confirmation? This is the second pay period where this issue has arisen, and I would appreciate it if the payment could be processed this week.

Moreover, I've been subjected to malpractice, harassment, and personal biases, and your disregard for frameworks such as the FRMS incorporated into the EB11 is concerning. I anticipate a written response, if not additional payments, for working shifts that disrupt my work-life balance. After more than two weeks without any response or overtime payment, I expect a written response to all the queries I've raised over the past 6 months. As a manager, I would have expected you to address these discrepancies before implementing any new procedures that would result in additional payments to yourself. I'd like to point out that the on-call function you have allocated yourself seems to be a misuse of departmental funds and is a cause for concern.

I've mentioned the issue of procedures outside of working hours, suggesting a simple email that includes who received the call from the department, who they contacted following the procedure, and finally, sending a group email to the department every time a shift is covered. This ensures that individuals taking sick leave after hours are appropriately allocated and held accountable to the entire team. Having not received a call for almost a year, I'm aware of how you've rostered or allowed others to allocate shifts in the past.

Our department's guidelines, as stated in EB11 section 3.7, mandate a 10-hour break between shifts. I believe that with the appropriate manager, meticulous planning, and attention to detail, this is feasible.

Furthermore, according to policy number C65, travel time of less than 10 hours is classified as overtime. Given that my commute varies from 50 to 120 minutes each way, scheduling such shifts would result in a break of less than 6.5 hours. This needs to be factored in when planning shifts.

Regards,

Cory

From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Date: Tuesday, 9 April 2024 at 2:21 PM

To: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Cc: Ellen Stibbard <Ellen.Stibbard@health.qld.gov.au>

Subject: FW: Request for Review and Adjustment of Payment for Pay Period 8.03.2024 - 31.03.2024

Hi Cory,

Thank you for your email,

I have submitted an AVAC for Saturday 30.03.2024 public holiday not required PRN 15969838, this will be processed in the next pay run. As for the other dates listed on the spreadsheet are more than 3 months can I please request for you to submit an enquiry through MyHR payroll enquiries so they can investigate your entitlements for public holiday not required payments. If you are entitled a validation of claims older than 3 months is required to be submitted and I am more than happy to assist you with this. I have escalated your enquiry regarding fatigue leave for HR to confirm policies around this.

I would like to express the importance of communication, the sooner you raise your concerns with myself, the sooner I can action for you. As discussed in the past in previous meetings with yourself and with Tammy, if you have any concerns

at all regarding your current/future rosters, please see me as soon as possible. I would like to request a catch-up meeting with yourself when you are back in the office next week. Please let me know when you are available.

If you have any questions at all, please don't hesitate to contact me.

Kind regards,
Chloe

Chloe Taylor

A/Switchboard Manager | Switchboard Services

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Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131

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From: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Sent: Monday, 8 April 2024 3:56 PM

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>; Ellen Stibbard <Ellen.Stibbard@health.qld.gov.au>

Subject: Request for Review and Adjustment of Payment for Pay Period 8.03.2024 - 31.03.2024

Importance: High

Dear Chloe and Ellen,

I am writing to formally request a review of my payment for the pay period of 8th March to 31st March 2024. Attached, please find a detailed PDF outlining the specifics.

It has come to my attention that I have not received payment for the Saturday public holiday on which I was not required to work, nor have I been compensated with the correct penalty rates for my Monday shift from 0600-1400 hours, following a Sunday shift rostered from 1400-2200 hours on the previous fortnight.

Enclosed, you will also find policies that delineate both public holiday payments and additional payments applicable in cases where employees are not rostered a minimum of a ten-hour break between shifts.

For your convenience, an Excel file is attached as well, providing a clear indication of public holiday payments and those yet to be made for the previous years.

As per the Hospital and Health Service General Employees (Queensland Health) Award – State 2015 PART 5 SECTION 15; it is stipulated that unless there is mutual agreement or change of regular rosters, employees are entitled to no less than a ten-hour break.

Reference C65 (QH-POL-135) further elucidates additional payments at double rates; please find this policy attached for your review.

Should there be any ambiguity or need for further clarification on this matter, kindly let me know at your earliest convenience so we can expedite resolution.

Thank you in advance for your attention to this matter and anticipated prompt action.

Yours sincerely,

Cory